



File No: EXP202301247

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested GOOGLE LLC (hereinafter, the respondent) to delete his data from several URLs.

1

***URL.1

2

***URL.2

3

***URL.3

4

***URL.4

5

***URL.5

He filed a complaint regarding the denial of a request to exercise the right to be forgotten concerning several links that contain his personal data, which reflect his participation in various selection processes.

Along with the complaint, he submitted a copy of a denial response from Google, dated 11/16/2022, arguing that the matter seems to be related to a job or profession he may currently be engaged in. He also attached a copy of the claimant's response informing the search engine that: "The content in question is related to a list of excluded candidates in the hiring lists process of XXXXXXXXXXXX from 2014, therefore, it is outdated information from 8 years ago. I have never held any public function, and that is why it is not recorded. My current professional employment is in the private sector."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The respondent indicated that, regarding URL No. 5, "(...) it has re-examined Mr. A.A.A.'s request and, (...) has verified that as of today, that URL does not even appear among the results of the Google search when performing a search based on the name of the interested party."

"On the other hand, regarding the remaining search results subject to the complaint, this party considers that they refer to information that seems to present relevance and public interest. In particular, the disputed search results refer to official publications published on the institutional website of (...), C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es, regarding the competitive examinations to which Mr. A.A.A. has been applying for the positions of (...) in 2021, (...) in 2014, or for (...) in 2008."

"(...) Furthermore, it cannot be overlooked that the information to which the disputed search results refer is clearly related to the professional activity of Mr. A.A.A. (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on March 7, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within fifteen working days it could present the arguments it deemed appropriate. This entity indicated, in summary, that "(...) it has re-examined the content of the web pages to which the disputed search results refer and, regarding one of the search results (URL No. 3) subject to the claimant's complaint, it has reconsidered its initial decision. Consequently, Google LLC has proceeded to block the request made

by Mr. A.A.A. regarding that URL.”

“On the other hand, concerning three of the URLs subject to Mr. A.A.A.'s complaint (No. 1, 2, 4), this party has verified that as of today, those URLs do not even appear among the results of the Google search when performing a search based on the name of the interested party.”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within fifteen working days, he may formulate any arguments he deems appropriate, without any arguments being submitted within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The outcome of this forwarding did not satisfy the claims of the complainant. Consequently, on March 7, 2023, for the purposes provided in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection decided to admit the complaint for processing. This decision to admit the complaint determines the initiation of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by a decision to admit the complaint, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the decision to admit the complaint was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should

be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to be Forgotten

The right to be forgotten is provided for in Article 17 of the GDPR, as well as in Article 93 of the LOPDGDD, regarding the right to be forgotten in Internet searches, which states, in its paragraph 1, the following:

"1. Everyone has the right for search engines on the Internet to remove from the lists of results obtained from a search carried out based on their name the links published that contained information relating to that person when they are inadequate, inaccurate, irrelevant, outdated, or excessive, or have become such due to the passage of time, taking into account the purposes for which they were collected or processed, the time elapsed, and the nature and public interest of the information. Similarly, this should be done when the personal circumstances invoked by the affected party demonstrate the prevalence of their rights over the maintenance of the links by the Internet search service."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/9

This right shall persist even when the retention of the information published on the website to which the link was directed is lawful and no prior or simultaneous deletion is carried out.

As stated in the Supreme Court ruling of January 11, 2019, "This fundamental right to be forgotten is not an unlimited right - constitutional doctrine holds - because, although the Constitution does not expressly establish specific limits, based on the principle of unity of the Constitution, the limits derived from the respect for other fundamental rights are applicable, among which the freedom of information proclaimed by Article 20 of the Constitution is of special relevance."

Regarding the nature of the search engine as a data processing controller, it should be noted that a search engine is a tool that facilitates internet users' access to certain web pages. To do this, the tool accesses a list of previously indexed links and provides the user with a list of web addresses that refer to pages containing the words selected by the user.

The ruling of the Court of Justice of the European Union of May 13, 2014, states the following:

Paragraph 28: "(...) by exploring the Internet in an automated, constant, and systematic manner in search of the information published there, the operator of a search engine collects such data, which it extracts, records, and subsequently organizes within the framework of its indexing programs, stores on its servers, and, where appropriate, communicates and facilitates access to its users in the form of search result lists. Since these operations are explicitly and unconditionally included in Article 2, letter b), of Directive 95/46, they must be classified as processing in the sense of that provision, regardless of whether the search engine operator also performs the same operations with other types of information and does not distinguish between these and personal data."

Paragraph 33: "However, the search engine operator is the one who determines the purposes and means of this activity and, thus, of the processing of personal data that it carries out in this context, and consequently, must be considered responsible for such processing under the aforementioned Article 2, letter d."

Paragraph 35: "On this particular matter, it should be noted that the processing of personal data carried out within the framework of a search engine's activity is distinct from that carried out by website publishers, which consists of displaying such data on a webpage, and is added to it."

Consequently, the Court of Justice considers that the search engine operator is responsible for the processing of data by determining the purposes and means of its activity.

Regarding the possibility of exercising the right to erasure before the internet search engine without resorting to the website controller, the Court of Justice of the European Union, in its ruling of May 13, 2014 (case C-131/12), has stated:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/9

"(...) a data processing (...) carried out by the manager of a search engine, can significantly affect the fundamental rights to respect for private life and the protection of personal data when the search conducted using that search engine is based on the name of a natural person, since such processing allows any internet user to obtain, through the list of results, a structured view of the information related to this person that may be found on the Internet, which potentially affects a multitude of aspects of their private life, which, without that engine, would not have been interconnected or could only have been very difficult to do so, and thus allows the establishment of a more or less detailed profile of the person in question. Furthermore, the effect of the interference with the rights of the data subject is multiplied due to the significant role that the Internet and search engines play in modern society, which confer a ubiquitous character to the information contained in such a list of results (see, in this regard, the judgment in eDate Advertising and others, C-509/09 and C-161/10, EU:C2011:685, paragraph 45)."

"The Court of Justice maintains that the removal of links from the list of results based on the name of the natural person affected by the dissemination of the news could have repercussions on the legitimate interest of internet users potentially interested in accessing the information in question, so it is necessary to seek a fair balance between this interest and the fundamental right of the affected person in accordance with Articles 7 and 8 of the Charter of Fundamental Rights of the European Union."

"(...) to respect the rights established by these provisions, provided that the requirements set out therein are genuinely met, the manager of a search engine is obliged to remove from the list of results obtained following a search carried out based on the name of a person links to web pages, published by third parties and containing information related to this person, even in the event that this name or this information is not removed beforehand or simultaneously from these web pages, and, where applicable, even if the publication on such pages is lawful in itself."

Consequently, the processing of personal data carried out by the manager of a search engine allows for a "name" to yield a list of results that provide information about a person that may affect their private sphere. Once the data subject has submitted their request for the removal of their personal data to the search engine, it must examine it and proceed, where appropriate, to remove the specific

links from the list of results, without the need to first or simultaneously contact the website owner. Furthermore, it is also inferred from the above that the conflicting rights and interests must be weighed in each specific case in order to determine which right prevails.

For the purpose of carrying out the weighing task, it should be recalled the Judgment of the Supreme Court, number 545/2015, of October 15, 2015, which states that the so-called "right to digital forgetfulness," which is a specification in this field of the rights derived from the quality requirements of personal data processing, does not allow each individual to construct a past to their liking, obliging publishers...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/9

of web pages or to search engine managers to remove the processing of their personal data when associated with facts that are not considered positive. It does not justify that those who expose themselves publicly can demand that a curriculum be constructed to their liking, controlling the discourse about themselves, removing negative information from the Internet, "positioning" the results of Internet searches at their whim, so that the most favorable occupy the top positions. If this thesis were accepted, it would severely disrupt the information mechanisms necessary for citizens to make their decisions in the democratic life of a country.

Equally relevant is the doctrine contained in the ruling of the Audiencia Nacional, dated June 21, 2019, which specifies, in its fifth legal foundation, the following, in relation to the information related to the professional life of the interested party:

(...) "General doctrine that is also developed in sections 81, 93, and 97 of the repeated Judgment of the CJEU - of May 13, 2014 - indicating that, notwithstanding that prevalence, a fair balance must be sought between the legitimate interest of internet users in accessing information in a search concerning a person's name and the fundamental rights of that person, and it may result that, for specific reasons such as the role played by the mentioned interested party in public life, the interference with their fundamental rights is justified by the preponderant interest of the public in having access to the information in question as a result of this inclusion.

In the case at hand, entering into the weighing of the rights and interests at stake, it must first be taken into account that it refers to the professional life of the claimant, a businessman, and not to personal life, as this is very relevant to modulate the intensity that the protection of the right regulated in Article 18.4 of the Constitution deserves, as this Chamber has pointed out in the Judgments of May 11, 2017 - appeal no. 30/2016 - and June 6, 2017 - appeal no. 1.797/2015."

In this sense, it is appropriate to refer to the guidelines of the Working Group of the 29 on the right to be forgotten (Guidelines on the implementation of the Court of Justice of the European Union Judgment on "Google Spain and inc v. AEPD and Mario Costeja C-131/12), which states: "There is a basic difference between a person's private life and their public or professional life. The availability of information in search results becomes more acceptable the less information it reveals about a person's private life (...) information is more likely to be relevant if it is related to the professional life of the interested party, but it will depend on the nature of the interested party's work and the legitimate interest of the public in having access to that information through a search by their name (...)."

When the information refers to private individuals, the Constitutional Court has declared that "even when the news concerning the subject matter relates to public interest, not all of its content is protected by the freedom of information - in this case, freedom of expression - but it may be deemed disproportionate to transmit those facts that, within the news, affect the honor or intimacy of the concerned person and that are revealed as 'manifestly'

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/9

"unnecessary and irrelevant to the public interest of the information" (SSTC 105/1990, of June 6, FJ 8, and 121/2002, of May 20, FJ 5).

Furthermore, in order to assess the public relevance of the matter, it must be analyzed whether the published information remains of general interest due to the time that has elapsed. On this issue, the Audiencia Nacional stated in its ruling dated November 8, 2017, the following: "Moreover, unlike the first link, an excessive amount of time has not elapsed between the date on which the cancellation request was made to the search engine and the date of the publication of the news. Indeed, since the date the news was published (August 2011) and the date on which the right of cancellation was exercised (July 2015), not even four years have passed, and the fact that it is an archive, given the terms that apply in this case and as previously stated, does not affect this conclusion."

In this regard, the aforementioned Judgment of the Court of Justice of the European Union states in its paragraph 93 the following: "Even an initially lawful processing of accurate data may become, over time, incompatible with that Directive when these data are no longer necessary in relation to the purposes for which they were collected or processed. This is particularly the case when they are inadequate, irrelevant, or no longer relevant or are excessive in relation to these purposes and the time elapsed."

V

Conclusion

Once the documentation in the file has been examined, it is observed that after conducting a search based on the name of the claimant, access is gained to a list of results in which the questioned URL(s) appear, publishing information and personal data that have nothing to do with professional activity or public interest; therefore, the right to data protection of the claimant must prevail over the right to freedom of expression and information.

Maintaining the dissemination of the information may discredit the personal life of the claimant, affecting the rights to honor, privacy, and protection of personal data; therefore, it is understood that the processing of data is not necessary, resulting in an interference with the fundamental right regarding the private life of the claimant. For all these reasons, the personal data from the disputed URLs must be delisted and not be accessible through an internet search concerning the name of the claimant, in order to avoid the dissemination of information that may be harmful to the invoked rights, with the autonomous right to data protection prevailing over freedom of expression and information as it lacks relevance and public interest.

In the case analyzed here, once the documentation in the file has been examined, it is observed that, although it is true that the respondent denied the right to deletion of several URLs exercised by the claimant, considering that they referred to information that seemed to present relevance and public interest, during the processing of the present procedure, it has reconsidered its decision and has proceeded to block the requested URL that is indexed with the search of the claimant's data, also noting that the other URLs no longer appear.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/9

Therefore, with the new measures adopted by the respondent, the rights of the affected party are duly restored, and consequently, it is appropriate to uphold the present claim for formal reasons, as the request has been addressed extemporaneously, without requiring additional actions.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against GOOGLE LLC.

However, it is not appropriate to issue a new certification by the respondent, as the response has been issued extemporaneously, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and GOOGLE LLC.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-140623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es